



Criminal Procedure (Scotland) Act 1965

1965 CHAPTER 39

An Act to amend the law of Scotland in relation to admissions and agreements in respect of evidence in trials on indictment, and for purposes connected therewith. [5th August 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Admissions
and
agreements
as to evidence
in solemn
procedure.

1.—(1) In any trial of an accused person on indictment, where that person is legally represented, it shall not be necessary for that person or for the prosecutor to prove any fact which is admitted by the other, or to prove any document, the terms and application of which are not in dispute between them; and a copy of any document may, where they so agree, be accepted as equivalent to the original document.

(2) For the purposes of the foregoing subsection any admission or agreement shall be made by lodging with the clerk of court a minute in that behalf signed—

- (a) in the case of an admission, by the person making the admission if he is the prosecutor, or by his counsel or solicitor if that person is the accused, and
- (b) in the case of an agreement, by the prosecutor and the counsel or solicitor of the accused.

(3) Where a minute has been signed and lodged as aforesaid, any facts and documents admitted or agreed thereby shall be deemed to have been duly proved; and a copy of any document so agreed to be accepted as equivalent to the original document shall be accepted as so equivalent.

(4) Section 20 of the Administration of Justice (Scotland) Act 1933 (agreements as to admission of documents in trials on indictment) and section 12 of the Criminal Procedure (Scotland) Act 1938, which amends the said section 20, are hereby repealed. 1938 c. 48.

2.—(1) This Act may be cited as the Criminal Procedure (Scotland) Act 1965. Short title
and extent.

(2) This Act shall extend to Scotland only.